

25TRCV03363 25TRCV03363

County: los-angeles

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Case Number: 25TRCV03363 Hearing Date: September 16, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

SOMA SENEVIRATNE

;

Plaintiff,

vs.

AIRPORT

TERMINAL MANAGEMENT, INC.

, et al.;

Defendants.

Case

No.:

25TRCV03363

Hearing

Date:

September
16, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

SOMA SENEVIRATNE'S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES, SET ONE

(2)

PLAINTIFF

SOMA SENEVIRATNE'S MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

(3)

PLAINTIFF

SOMA SENEVIRATNE'S requests for monetary sanctions

MOVING PARTY: Plaintiff, Soma Seneviratne, by
and through her Guardian Ad Litem Saman Seneviratne

RESPONDING PARTY: Defendant, City of Los Angeles,
Department of Airports, also known as Los Angeles World Airports

(1)

Plaintiff

Soma Seneviratne's Motion to Compel Responses to Form Interrogatories, Set One,
is DENIED pursuant to Code of Civil Procedure section 2030.290, subdivision

(b).

(2)

Plaintiff

Soma Seneviratne's Motion to Compel Responses to Request for Production of Documents, Set One, is DENIED pursuant to Code of Civil Procedure section 2031.300, subdivision (b).

(3)

Plaintiff

Soma Seneviratne's Requests for Monetary Sanctions are DENIED pursuant to Code of Civil Procedure sections 2023.010, 2030.290, and 2031.300.

The Court considers the moving papers filed on June 15, 2026, the opposition briefs filed on September 2, 2026, and the reply briefs filed on September 9, 2026.

BACKGROUND

Factual Background

On October 1, 2025, plaintiff

Soma Seneviratne ("Plaintiff"), by and through her Guardian Ad Litem Saman Seneviratne, filed the Complaint against defendants Airport Terminal Management, Inc., Singapore Airlines Limited, Prosegur Services Group, Inc., City of Los Angeles, and DOES 1 through 20.

On January 23, 2026, Plaintiff

filed the First Amended Complaint ("FAC") against defendants Airport Terminal Management, Inc., Singapore Airlines Limited, Prosegur Services Group, Inc., City of Los Angeles, and DOES 1 through 20.

The FAC includes the following causes of action: (1) Negligence; (2) Premises Liability; (3) Dangerous Condition of Public Property; and (4) Act of Employee (Violation of Cal. Gov. Code Section 815.2).

On June 3, 2026, Plaintiff

filed an amendment to the FAC, naming Tom Bradley International Terminal Equipment Company as DOE 1.

On February 19, 2026, Plaintiff

served the City of Los Angeles ("Defendant") with a series of discovery requests, which included: (1) Form Interrogatories, Set One, and (2) Request for Production of Documents, Set One. (Declaration of Philip J. Altieri II re: FROG ("FROG Altieri Decl."), ¶ 3, Exhs. A-B;

Declaration of Philip J. Altieri II re: RPD ("RPD Altieri Decl."), ¶ 3, Exhs. A-B.) The deadline for Defendant to provide responses and the requested documents was set for March 25, 2026. (FROG Altieri Decl., ¶ 4; RPD Altieri Decl., ¶ 4.)

From March 24 to May 28, 2026,

Defendant's counsel requested multiple extensions to respond. (FROG Altieri Decl., ¶¶ 5-9, Exhs. C-G; RPD Altieri Decl., ¶¶ 5-9, Exhs. C-G.) Plaintiff's

counsel granted each request, resulting in a new due date of June 5, 2026. (FROG Altieri Decl., ¶¶ 5-9, Exhs. C-G; RPD Altieri Decl., ¶¶ 5-9, Exhs. C-G.)

On June 5, 2026, Defendant's

counsel sent yet another request for an extension, asserting that they had not yet obtained their client's verifications and required until June 12, 2026, to do so. (FROG Altieri Decl., ¶ 10, Exh.

H; RPD Altieri Decl., ¶ 10, Exh. H.) However,

it appears that Plaintiff's counsel did not provide a response, and as a result, Defendant provided responses that consisted solely of objections. (FROG Altieri Decl., ¶ 11, Exh. I; RPD Altieri Decl., ¶ 11, Exh. I.)

On June 8, 2026, Plaintiff's

counsel emailed Defendant's counsel, stating that the June 5 email confirmed Defendant could have provided substantive responses if it weren't for the verifications. (FROG Altieri Decl., ¶ 12, Exh. J; RPD Altieri Decl., ¶ 12, Exh. J.)

Plaintiff's counsel contended that Defendant ought to have provided the substantive responses while simultaneously indicating that the verifications would be forthcoming by the end of the week.

(FROG Altieri Decl., ¶ 12, Exh. J; RPD Altieri Decl., ¶ 12, Exh. J.)

Furthermore, Plaintiff's

counsel requested verified substantive responses by the week's end and advised that they would proceed with filing motions to compel if these responses were not provided. (FROG Altieri Decl., ¶ 12, Exh. J; RPD Altieri Decl., ¶ 12, Exh. J.)

They also stated that, upon the filing of these motions, they would not withdraw them, even if verified responses were subsequently provided. (FROG Altieri Decl., ¶ 12, Exh. J; RPD Altieri Decl., ¶ 12, Exh. J.)

Defendant did not provide

verified substantive responses by the time Plaintiff filed their reply briefs on

September 9, 2026. (Supplemental Declaration of Philip J. Altieri II re: FROG ("Suppl. FROG Altieri Decl."), ¶ 5; Supplemental Declaration of Philip J. Altieri II re: RPD ("Suppl. RPD Altieri Decl."), ¶ 5.)

LEGAL STANDARD

A

party must respond to interrogatories and requests for production within thirty (30) days after service. (Code Civ. Proc., §§ 2030.260, subd. (a), 2031.260, subd. (a).)

If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions, fifteen (15) days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 (Sinaiko).)

Further, when there has been no timely response to a Code of Civil Procedure section 2031.010 demand, the demanding party may seek an order compelling a response. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to respond in a timely manner waives all objections, including those based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) Thus, unless the party to whom the demand was directed obtains relief from a waiver, they cannot raise objections to the documents demanded. There is no time limit for a motion to compel responses to a demand for inspection, copying, testing, or sampling other than the cut-off on hearing discovery motions, fifteen (15) days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2031.300.) Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. (Code Civ. Proc., § 2031.300.) Where the motion seeks only a response to the

inspection demand, no showing of “good cause” is required. (Code Civ. Proc., § 2031.300.)

Under Code of Civil

Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a).) “Misuses of the discovery process

include ... (d) Failing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc., §

2023.010, subd. (d).) “The court may

award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

DISCUSSION

Plaintiff moves to compel Defendant’s verified, substantive responses to (1) Form Interrogatories, Set One, and (2) Request for Production of Documents, Set One, in accordance with Code of Civil Procedure sections 2030.290 and 2031.300. (FROG MTC, pp. 3:7-10, 5:22-7:10; RPD MTC, pp. 3:7-10, 5:26-7:7.) However, these statutes address a party’s failure to provide initial responses. Since Defendant delivered timely initial responses, the statutes in question are not applicable. (FROG Altieri Decl., ¶ 12, Exh. J; RPD Altieri Decl., ¶ 12, Exh. J.) Although Defendant provided only unverified objections, such responses were timely and permissible.

Plaintiff contends that moving under the aforementioned statutes is appropriate because “[Defendant] requested its final extension specifically ‘to serve verified responses,’ represented that its responses were already ‘with the client for verification,’ and its June 5 response itself recited that [Defendant’s] ‘investigation and discovery ... are continuing and are not

complete.’ Those facts reasonably led

Plaintiff to move for the substantive answers that plainly remained under preparation rather than treat every objection as [Defendant’s] completed, final merits position.” (FROG Reply, p. 2:13-18; RPD Reply, p. 2:13-18.)

The Court finds this argument perplexing. Defendant provided initial responses. If Plaintiff found these responses to be inadequate, as it asserts by stating that Defendant should have provided substantive responses, Plaintiff was obligated to file motions to compel further responses, accompanied by a separate statement and a declaration outlining meet-and-confer efforts in compliance with Code of Civil Procedure section 2016.040. (See Code Civ. Proc., §§ 2030.300, 2031.310.)

Furthermore, while the Court acknowledges that Defendant seemingly had substantive responses ready, Defendant did not have the required verifications, which it communicated to Plaintiff on June 5th.

Defendant was not obligated to provide responses without verifications, particularly since Plaintiff had not granted an extension. Delivering these responses without verification would have resulted in the waiver of any objections included in the substantive responses. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) To prevent such a waiver, Defendant opted to serve only objection-based responses. However, this does not mean that Defendant’s responses were code-compliant. Plaintiff should have filed motions to compel further to challenge these responses.

Plaintiff subsequently argues that, “Even if the Court concludes that Plaintiff should have proceeded under [the statutes governing motions to compel further responses] rather than [those governing motions to compel initial responses], the consequence should not be outright denial. Such a conclusion would identify a procedural mismatch — not a failure to timely seek the discovery or any uncertainty about the relief Plaintiff seeks. ... Under *Sole Energy* and *Sinaiko*, the Court has discretion to look to substance rather than form and to manage a procedural mismatch without automatically denying relief. In these circumstances, fairness favors reaching the substance of the dispute — or permitting only whatever limited additional procedure the Court finds necessary — rather than rewarding the continued withholding of discovery through an otherwise curable procedural issue.” (FROG Reply, p. 4:5-8, 14-19; RPD Reply, p. 4:5-8, 14-19.)

The Court recognizes its ability to disregard the formal labels of motions and evaluate them in accordance with the relevant statutes. However, Plaintiff failed to comply with said statutes or to provide a sufficient legal analysis. Specifically, Plaintiff did not present an analysis that clarifies the inadequacy of Defendant's objections, failed to include a separate statement or a concise outline, and did not adequately engage in a meet and confer process regarding each purportedly deficient response prior to submitting the motions.

(See Code Civ. Proc., §§ 2030.300, 2031.310.)

As such, Plaintiff's motions and requests for monetary sanctions are DENIED.

ORDERS

1) Plaintiff

Soma Seneviratne's Motion to Compel Responses to Form Interrogatories, Set One, is DENIED.

2) Plaintiff

Soma Seneviratne's Motion to Compel Responses to Request for Production of Documents, Set One, is DENIED.

3) Plaintiff

Soma Seneviratne's Requests for Monetary Sanctions are DENIED.

4) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 16, 2026

Tamara
Hall

Judge
of the Superior Court